

LENIOR, et al., v. PACIFIC GAS AND ELECTRIC COMPANY

22CV46442

DEFENDANT'S DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT

This case involves a dispute between utility customers and the utility company concerning an unpaid bill of \$126,691.66.

Before the Court is defendant's demurrer to the Second Amended Complaint (SAC), challenging each cause of action stated therein. A demurrer presents an issue of law regarding the sufficiency of the allegations outlined in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (California Code of Civil Procedure (CCP) §§425.10(a), 459; in accord, *Blank v. Kirwan* (1985) 39 Cal.3rd 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

Defendant's Request for Judicial Notice is GRANTED.

At two prior demurrer hearings, the court thoroughly addressed the matter of exclusive jurisdiction over customer billing disputes. The court previously outlined the necessary facts to challenge the exclusive jurisdiction established by California Public Utility Code (PUC) §1759(a), and to bring the matter within the purview of PUC §2106.

In the previous rulings, the court guided plaintiffs regarding the requirements for stating a cause of action that would remove the complaint from the California Public Utilities Commission (CPUC) exclusive authority for adjudication of customer disputes. Plaintiffs contend the causes of action for slander and intentional infliction of emotional distress achieve this goal.

Upon reviewing the SAC, plaintiffs introduced only two arguably substantive additions when compared to the earlier pleadings. In a three-paragraph amendment labeled "JURISDICTION" (set forth as section/paragraph 17) plaintiffs argue that their claims do not contravene "the commission." The additional language concludes "the civil court has jurisdiction." (SAC ¶17, pg.8.) This is argument, not facts. Further, at ¶21 the amended language adds a damage element assertion- one plaintiff's facial nerve virus flared and was attributed to the stress of the billing dispute.

Notably, plaintiffs did not address their First Cause of Action – Wrongful Investigation.

Demurrer to the Second Amended Complaint is **SUSTAINED** to all causes of action, WITHOUT leave to amend. The Court considers three attempts to provide a viable pleading sufficient to meet the interests of justice.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to CRC 1.1312 in conformity with this Ruling.

PONTE v. PERREIRA

23CV47125

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

This is a quiet title action to confirm an easement over defendant's real property. The parcels are adjacent and plaintiff gains access to Hogan Dam Road through defendant's real property. Initially, plaintiff unsuccessfully requested a temporary restraining order and preliminary injunction *ex parte* when filing the complaint. Presently, a noticed motion for a preliminary injunction is before the Court.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that a combination of exigent circumstances and defendant's tacit waiver of objection to the failure to include the mandatory language suffices to proceed substantively. (Plaintiff is cautioned this is a rare instance where the